

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 06/10/2026 TIME: 9:00 and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

(1) The Court - by calling (408) 808-6856 and

(2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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DATE: 06/10/2026 TIME: 9:00 and 9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV407623	Shiue-Mei Kou et al vs Chih-Ling Chou et al	Motion: Order Please control click or scroll down to Line 1
LINE 2	24CV432761	JRK Investors, Inc. et al vs Fairfield Great Oaks LP et al	Motion: Summary Judgment / Adjudication Please control click or scroll down to Line 2 (for 2 & 3)
LINE 3			
LINE 4	24CV443124	Lozzie Jessie, IV vs Zanotto's Willow Glen, Inc.	Motion: Compel Defendant's Motion to Compel Deposition of Dr. Sukhdeep Ahuja and Dr. Jennifer Bruha and Request for Monetary Sanctions Against Plaintiff. The Court has received no opposition from Plaintiff. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Defendant's motion to compel is GRANTED. Sanctions are appropriate but the requested amount is excessive as the anticipated three hours for reviewing Plaintiff's opposition and preparing reply brief is not applicable. Court GRANTS sanctions in the amount of \$750.00 for costs incurred in bringing this action. If no one contests this tentative ruling, the amount will be further reduced by one hour. Defendant to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.
LINE 5	24CV450632	Subramanyam Ramaswamy vs PPC Sage LLC et al	Motion: Compel Answers Please control click or scroll down to Line 5

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DATE: 06/10/2026 TIME: 9:00 and 9:01 A.M.

LINES 6-12	25CV457483	Richard Chamberlain vs Jason Chamberlain	Line 6: Motion - Declare Plaintiff Vexatious Litigant Please control click or scroll down to Line 6 Lines 7 – 12: In light of 5/8/2026 dispositive ruling on the motion for summary judgment, the remaining motions are rendered moot and ordered off calendar.
LINE 13	24CV469611	Danea Burleson vs Bay Area Ketamine Center, Inc. et al	Motion: Protective Order
LINE 14	25CV472916	Immigration Resettlement and Cultural Center ("IRCC"), Inc. vs Cuong Nguyen et al	Hearing: Demurrer Please control click or scroll down to Line 14
LINE 15	25CV474936	Hoswualdo Lopez vs Ford Motor Company et al	Hearing: Petition Compel Arbitration Please scroll down to Line 15
9:01	CASE #	CASE TITLE	RULING
LINE 1	21CV37621	George Ku vs. Harald Herchen	Hearing: Order of Examination
LINE 2	24CV430720	Capital One N.a. vs Maurice McIntosh et al	Hearing: Claim of Exemption The Court defers ruling on the debtor's Claim of Exemption and requests additional documentation pursuant to CCP §703.540. Within 30 days, the debtor shall file and serve documentation supporting the claimed monthly expenses, including but not limited to: • Proof of earnings; • Proof of rent or housing payments (such as a lease agreement, rent receipts, or bank statements reflecting rent payments);

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			• Documentation supporting utilities, insurance, medical bills, etc. • Any other documentation reasonably demonstrating the claimed monthly expenses. Upon receipt and review of the documentation, the Court will determine whether the debtor's earnings are necessary for the support of the debtor and her dependents under CCP §706.050 and whether the claimed exemption should be sustained in whole or in part. The Hearing on Claim of Exemption will be continued to 7/24/26 at 9:01 in Department 12.
LINE 3	24CV441704	Jesse Montoya vs Maurice McIntosh et al	Hearing: Compromise of Minor's Claim Absent objection, the Court will sign the proposed order e-filed 4/30/2026
LINE 4- 6	24CV452389	Steven Wass et al vs Kejing Huang et al	Hearing: Compromise of Minor's Claim Absent objection, the Court will sign the proposed orders e-filed 5/8/2026

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Calendar Line 1

Shiue-Mei Kou et al vs Chih-Ling Chou et al
22CV407623

Plaintiffs' Motion to Lift Forum Non Conveniens Stay

PROCEDURAL BACKGROUND

On May 17, 2024, the Court stayed this action pursuant to the doctrine of forum non conveniens in favor of litigation in Taiwan. Plaintiffs now move to lift the stay, contending that Taiwan is not a suitable or available alternative forum because Taiwan courts lack jurisdiction over Defendants and because any Taiwan civil action is now barred by the applicable statute of limitations.

LEGAL STANDARD

Code of Civil Procedure section 410.30 authorizes a California court to stay or dismiss an action when, in the interest of substantial justice, the action should be heard in another forum.

Under *Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, the Court must first determine whether the proposed alternative forum is suitable. A forum is generally suitable when the defendant is subject to jurisdiction there and the action is not barred by the statute of limitations. (*Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1464.)

Where a stay has been imposed, a plaintiff may seek relief upon a showing that the alternative forum is unavailable or otherwise unsuitable. However, a party ordinarily must make a good-faith effort to pursue relief in the designated forum before claiming that forum is unavailable. (See *Diaz-Barba v. Superior Court* (2015) 236 Cal.App.4th 1470.)

ANALYSIS

The Court finds that Plaintiffs have made substantial efforts to pursue relief in Taiwan. The record reflects that Plaintiffs initiated proceedings in Taiwan and sought review through multiple governmental and judicial channels. Accordingly, the Court does not find that Plaintiffs acted in bad faith or deliberately attempted to frustrate the foreign proceedings.

The dispositive question is whether Plaintiffs have demonstrated that Taiwan is presently unavailable as a forum.

Plaintiffs contend that Taiwan lacks jurisdiction over Defendants because the alleged conduct occurred in California and Defendants reside in California. Plaintiffs further rely on rulings and communications from Taiwan authorities suggesting that California is the more appropriate forum.

Defendants respond that Taiwan jurisdiction remains available under Article 25 of the Taiwan Code of Civil Procedure because Defendants have expressly agreed to submit to Taiwan jurisdiction and not contest it. Defendants have submitted sworn declarations stating that they will appear in Taiwan and accept jurisdiction if a civil action is filed.

Plaintiffs also contend that any Taiwan civil action is now barred by the applicable two-year statute of limitations and that Article 147 of the Taiwan Civil Code prevents Defendants from waiving that defense.

Defendants dispute that interpretation. They rely on Article 144 of the Taiwan Civil Code and expert testimony indicating that expiration of the limitations period does not extinguish the claim itself but instead provides a defense that may be asserted or declined by the defendant. Defendants contend that their express agreement not to invoke any limitations defense resolves the issue.

On the present record, the Court cannot conclude that Plaintiffs have established the unavailability of a Taiwan civil forum. The Court is presented with competing expert opinions regarding the effect of Articles 144 and 147, the availability of jurisdiction under Article 25, and the legal consequences of Defendants' consent to jurisdiction and waiver of defenses.

Most significantly, Plaintiffs have not filed a standalone civil action in Taiwan. As a result, no Taiwan civil court has been asked to determine whether Defendants' submission to jurisdiction is effective, whether a limitations defense may be waived under the circumstances presented here, or whether the action may proceed on the merits.

The Court is not persuaded that the existing criminal proceedings and related rulings conclusively resolve those questions. While those proceedings may provide evidence relevant to forum suitability, they do not establish that a Taiwan civil court would necessarily refuse to hear a properly filed civil action where Defendants have expressly agreed to appear and submit to jurisdiction.

Under these circumstances, the Court finds that Plaintiffs have not yet demonstrated that Taiwan is unavailable or unsuitable as a matter of law.

DISPOSITION

The motion is DENIED WITHOUT PREJUDICE.

Plaintiffs shall commence a standalone civil action in Taiwan within 60 days of notice of entry of this order. As a condition of the continued stay, Defendants shall: appear in the Taiwan civil action; submit to the jurisdiction of the Taiwan court; refrain from asserting any personal jurisdiction objection; and maintain the positions represented to this Court regarding any statute-of-limitations defense available under Taiwan law.

The parties shall file a joint status report regarding the Taiwan proceedings within 150 days of notice of entry of this order.

Plaintiffs may renew the motion at any time upon a ruling by a Taiwan court declining jurisdiction, finding the action time-barred, or otherwise refusing to adjudicate the matter on the merits.

Case will be continued for case status review in approximately 180 days.
Defendant to prepare the order accompanied by the EFS-020 Form within seven days of the hearing.

Calendar Lines 2-3

Case Name: *JRK Investors, Inc., et al. v. Fairfield Great Oaks, LP, et al.*

Case No.: 24-CV-432761

Factual and Procedural Background

This is an action for fraud, breach of contract and related claims by plaintiffs JRK Investors, Inc. (“JRK”) and Duo Apartments Property Owner, LLC (“Duo”) (collectively, “Plaintiffs”) against defendants Fairfield Great Oaks, LP (“Fairfield Great Oaks”), Fairfield Development, LP (“Fairfield Development”) (collectively, “Fairfield Defendants”) and Air Systems, Inc. (“Air Systems”) (collectively, “Defendants”).

According to the first amended complaint (“FAC”), by early 2017, the Fairfield Defendants were in the process of developing a multi-family apartment complex commonly known as the Duo Apartments, located at 6670 Emergent Way and 6520 Gamma Way, San Jose, California (“Project” or “Property”). (FAC at ¶ 8.) Fairfield Development acted as the design-build general contractor responsible for all trade work on the Project. (Id. At ¶¶ 10, 36.) The Fairfield Defendants acted together in concert as developers of the Property. (Id. At ¶ 9.)

Among other attributes, the Project contained plumbing service from main lines running through the common corridor spaces and branch lines entering into each unit through the common walls. (FAC at ¶ 14.) On May 23, 2018, Fairfield Development entered into a subcontract with defendant Air Systems for the supply and installation of plumbing systems at the Project. (Id. At ¶ 15.)

On June 1, 2023, plaintiff JRK communicated it was interested in purchasing the Property and issued a draft letter of intent, which outlined the terms of its interest and requested information to confirm, among other things, the “[d]escription of any factor that might change or reduce the current use of the property” and copies of building plans and permits. (FAC at ¶ 24.)

On June 27, 2023, JRK and Fairfield Great Oaks entered into a Letter of Intent (“LOI”) under which JRK agreed to proceed to negotiate a final purchase and sale agreement. (FAC at ¶ 25.) The principal terms of the LOI included a compressed timeline in which to execute a purchase and sale agreement and thereafter complete due diligence and close the sale. (Ibid.)

Following execution of the LOI, JRK’s acquisition team had multiple conversations, communications, and meetings with Fairfield Defendants’ representatives concerning the purchase of the Project. (FAC at ¶ 29.) At no time during the negotiations did Fairfield Defendants indicate that the construction of the Project was performed in a manner that deviated from the building codes, rules and regulations, or otherwise failed to meet the standard of care of design or construction of similar plumbing and other systems. (Ibid.) Instead, throughout the due diligence process, Fairfield Defendants reaffirmed and misrepresented to JRK’s acquisition team that there were no significant plumbing defects. (Ibid.)

On August 2, 2023, JRK and Fairfield Great Oaks entered into a written agreement of sale for the purchase and sale of the Project and Property (“PSA”). (FAC at ¶ 32.) After execution of the PSA, and prior to closing of the sale, JRK engaged in additional discussions with Fairfield Defendants in connection with JRK’s due diligence for the sale. (Id. At ¶ 34.) But, at no time did the Fairfield Defendants disclose defective plumbing, fireproofing or piping work on the Project. (Ibid.) Subsequent to the close of the sale, JRK transferred the Property to Duo, who holds title. (Id. At ¶ 42.)

Upon taking possession of the Property, Plaintiffs discovered that plumbing work did not comply with applicable law, building codes or industry standards and was hidden concealed within or behind walls. (FAC at ¶ 22.) Plaintiffs allege the Fairfield Defendants knew or should have known that the plumbing and piping work, as examples, were not installed or performed according to the applicable codes, laws or industry standards but that the Fairfield Defendants failed to disclose those known conditions to Plaintiffs. (Ibid.)

By stipulation and order, filed November 12, 2025, Plaintiffs filed the operative FAC against Defendants alleging causes of action for: (1) fraudulent concealment [against Fairfield Defendants]; (2) negligent misrepresentation [against Fairfield Defendants]; (3) negligence [against Defendants]; (4) breach of contract [against Fairfield Defendants]; (5) breach of contract [against Air Systems]; (6) express indemnity [against Air Systems]; (7) declaratory relief [against Fairfield Defendants]; and (8) declaratory relief [against Air Systems].

On December 4, 2025, the Fairfield Defendants filed an answer setting forth a general denial and affirmative defenses.

On December 19, 2025, the Fairfield Defendants filed separate motions for summary judgment and summary adjudication to causes of action in the FAC.¹ The Fairfield Defendants also filed requests for judicial notice in conjunction with the motions. Plaintiffs filed written oppositions. The Fairfield Defendants filed reply papers.

Trial is scheduled for April 5, 2027.

Motion for Summary Judgment, or in the Alternative, Summary Adjudication by Defendant Fairfield Development

The first, second, third, fourth and seventh causes of action in the FAC are alleged against defendant Fairfield Development. Fairfield Development moves for an order of summary judgment on the ground that Plaintiffs cannot raise any triable issue of material fact as to these claims and thus judgment should be entered as a matter of law. In the alternative, Fairfield Development moves for summary adjudication of the first, second, third, fourth, and seventh causes of action.

Request for Judicial Notice

“Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action

¹ The Fairfield Defendants are represented by the same counsel of record.

without requiring formal proof of the matter.” (*Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117.)

In support of the motion, defendant Fairfield Development requests judicial notice of the following: (1) screenshots of plaintiff JRK’s website; (2) Plaintiffs’ FAC; and (3) the court’s order stating that “Plaintiffs’ First Amended Complaint is deemed filed and served as of the date the Court’s Order is entered and served on the Parties.” (See Request for Judicial Notice at Exs. A-C.)

Here, the court declines to take judicial notice of Exhibits B and C, Plaintiffs’ FAC and the court’s order regarding the FAC, as the court must necessarily consider allegations of the challenged pleading in addressing a motion for summary judgment and summary adjudication. (See *Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640 [“On a motion for summary judgment, the issues are framed by the pleadings since it is those allegations to which the motion must respond.”].) The court also declines to take judicial notice of Exhibit A, screenshots of JRK’s website, as they are not relevant to resolving issues raised by the motion for reasons explained below. (See *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [a court need not take judicial notice of a matter unless it “is necessary, helpful, or relevant”].)

Accordingly, the request for judicial notice is DENIED.

Legal Standard

Any party may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) “The object of the summary judgment procedure is ‘to cut through the parties’ pleadings’ to determine whether trial is necessary to resolve their dispute. [Citation.]” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1020.)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact...” (*Aguilar, supra*, 25 Cal.4th at p. 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* At p. 851.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra*, 25 Cal.4th at p. 850.)

A triable issue of material fact exists “if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850, fn. Omitted.) If the plaintiff opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.* At p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom.” (*Aguilar, supra*, 25 Cal.4th at p. 856.) The moving party’s evidence is strictly construed, while the opponent’s is liberally construed. (*Id.* At p. 843.)

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation.] ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.’ [Citation.]” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.)

“[S]ummary judgment (or summary adjudication) is a drastic remedy and should be used with caution. [Citation.] Because summary judgment is a drastic procedure all doubts as to the propriety of granting a motion for summary judgment should be resolved in favor of the party opposing the motion. [Citations.]” (*Tully v. World Savings & Loan Assn.* (1997) 56 Cal.App.4th 654, 660; see *Kernan v. Regents of University of California* (2022) 83 Cal.App.5th 675, 684 [“The drastic remedy of summary judgment may not be granted unless reasonable minds can draw only one conclusion from the evidence.”].)

First Cause of Action: Fraudulent Concealment

“The elements of fraudulent concealment are ‘(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact.’ [Citation.]” (*Aton Center, Inc. v. United Health Care Ins. Co.* (2023) 93 Cal.App.5th 1214, 1246.)

“ ‘The purpose of a summary judgment proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute.’ [Citation.] ‘The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.’ [Citations.] The complaint measures the materiality of the facts tendered in a defendant’s challenge to the plaintiff’s cause of action. [Citation.]” (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381 (*FPI Development*)).

“The role of the pleadings in measuring materiality is supplemented by rules directly applicable to a summary judgment proceeding. The parties must submit ‘separate statements’ identifying each of the material facts in dispute with reference to the supporting evidence. [Citation.] The motion or opposition thereto must be supported by facts in the form of ‘affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.’ [Citation.] In a properly pleaded case this showing addresses the matters of fact put in issue by the pleadings, for properly drafted pleadings aver the ultimate facts which constitute the cause of action or defense thereto. [Citation.] In a summary judgment proceeding the factual submissions of the parties must track these averments by providing evidence of the ultimate facts averred. Because of this relationship, in the absence of an appropriate objection, some defects in the pleading of an ultimate fact may be remedied by resort to a factual showing in the summary judgment

proceeding. In this manner the pleadings may be read together with the factual showings in the summary judgment proceeding for purposes of discerning what is in issue.” (*FPI Development, supra*, 231 Cal.App.3d at p. 382.)

“The procedure for resolving a summary judgment motion *presupposes* that the pleadings are adequate to put in issue a cause of action or defense thereto. [Citation.] However a pleading may be defective in failing to allege an element of a cause of action or in failing to intelligibly identify a defense thereto. In such a cause, the moving party need not address a missing element or, obviously, respond to assertions which are unintelligible or make out no recognizable legal claim. The summary judgment proceeding is thereby necessarily transmuted into a test of the pleadings and the summary judgment motion into a motion for judgment on the pleadings. In these circumstances it has been said that a defendant’s ‘motion for summary judgment necessarily includes a test of the sufficiency of the complaint and as such is in legal effect a motion for judgment on the pleadings.’ [Citation.]” (*FPI Development, supra*, 231 Cal.App.3d at p. 382.)

A motion for judgment on the pleadings tests the legal sufficiency of factual allegations in the complaint. (*Lee v. Kotyluk* (2021) 59 Cal.App.5th 719, 728.) Like a demurrer, a motion for judgment on the pleadings challenges only defects on the face of the complaint. (*Ibid.*)

On summary judgment, defendant Fairfield Development argues in part that the fraudulent concealment claim fails as Plaintiffs have no evidence establishing a duty to disclose. (See Motion at pp. 12:5-13:1.)

“To maintain a cause of action for fraud through nondisclosure or concealment of facts, there must be allegations demonstrating that the defendant was under a legal duty to disclose those facts.” (*Los Angeles Memorial Coliseum Commission, et al. v. Insomniac, Inc., et al.* (2015) 233 Cal.App.4th 803, 831.)

“A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff’s fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e. partial concealment); or (5) the defendant actively conceals discovery of material fact from the plaintiff (i.e., active concealment).” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

Here, Plaintiffs do not allege facts establishing a duty of disclose against either defendant and thus fail to state a valid cause of action. The fraudulent concealment claim also includes both non-disclosures and affirmative misrepresentations. (See FAC at ¶¶ 54, 56-58.) Thus, it appears Plaintiffs are attempting to allege both a fraudulent concealment cause of action and an intentional misrepresentation claim. Plaintiffs concede as much in their opposition where, in a footnote, they confirm the existence of affirmative fraud and non-disclosure while reserving the right to add a claim for affirmative fraud. (See Plaintiffs’ OPP at p. 14, fn. 3.)

Based on these pleading concerns, the court finds that it is in the best of interest of all parties to treat the motion for summary judgment to the first cause of action as a motion for judgment on the pleadings. The court will afford Plaintiffs leave to amend the fraudulent concealment cause

of action to allege facts establishing a duty to disclose and separately allege a claim for affirmative fraud based on any misrepresentations. Should defendant Fairfield Development take issue with the amended fraudulent concealment claim and/or misrepresentation cause of action, it can file the appropriate pleading motion for demurrer, motion for judgment on the pleadings (after the filing of an answer), or dispositive motion for summary judgment or summary adjudication.

Therefore, the motion for summary judgment is DENIED. The motion for judgment on the pleadings to the first cause of action is GRANTED WITH 30 DAYS LEAVE TO AMEND. (See *City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 [if the plaintiff has not had an opportunity to amend the pleading in response to a motion challenging the sufficiency of the allegations, leave to amend is liberally allowed as a matter of fairness, unless the pleading shows on its face that it is incapable of amendment].) Having granted the motion for judgment on the pleadings, the court declines to address the remaining grounds on the motion for summary judgment and summary adjudication.

Second Cause of Action: Negligent Misrepresentation

“The elements of a negligent misrepresentation are ‘(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.’ [Citation.]” (*Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1252.)

In the second cause of action, the court again finds similar pleading deficiencies as the negligent misrepresentation claim improperly relies on both misrepresentations and non-disclosures. (See FAC at ¶¶ 64, 66-68.) Thus, the court also treats the second cause of action as a motion for judgment on the pleadings so Plaintiffs can properly amend and allege a valid claim based on misrepresentations, not concealment of facts. Furthermore, amendment appears appropriate given that Plaintiffs will also be amending the first cause of action for reasons explained above.

Consequently, the motion for judgment on the pleadings to the second cause of action is GRANTED WITH 30 DAYS LEAVE TO AMEND. Having granted the motion for judgment on the pleadings, the court declines to address the remaining grounds on the motion for summary adjudication.

Third Cause of Action: Negligence

“The essential elements of a cause of action for negligence are: (1) the defendant’s legal duty of care toward the plaintiff; (2) the defendant’s breach of duty – the negligent act or omission; (3) injury to the plaintiff as a result of the breach – proximate or legal cause; and (4) damage to the plaintiff.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.)

On summary adjudication, defendant Fairfield Development asserts that plaintiff JRK, through execution of the PSA, expressly agreed to release Fairfield Development from certain claims, including negligence, relating to the condition of the Property.

“A release may negate the duty element of a negligence action. Contract principles apply when interpreting a release, and ‘normally the meaning of contract language, including a release, is a legal question.’ [Citation.]” (*Benedek v. PLC Santa Monica* (2002) 104 Cal.App.4th 1351, 1356 (*Benedek*).)

“A written release may exculpate a tortfeasor from future negligence or misconduct. [Citation.] To be effective, such a release ‘must be clear, unambiguous, and explicit in expressing the intent of the subscribing parties.’ [Citation.] The release need not achieve perfection. [Citation.]” (*Benedek, supra*, 104 Cal.App.4th at p. 1356.)

“In the absence of extrinsic evidence, the scope of a release is determined by the express language of the release. [Citation.] The express terms of the release must be applicable to the particular negligence of the defendant, but every possible specific act of negligence of the defendant need not be spelled out in the agreement. [Citation.] When a release expressly releases the defendant from any liability, it is not necessary that the plaintiff have had a specific knowledge of the particular risk that ultimately caused the injury. [Citation.] If a release of all liability is given, the release applies to any negligence of the defendant.” (*Benedek, supra*, 104 Cal.App.4th at p. 1357.)

In support, defendant Fairfield Development directs the court to Section 7(a) of the PSA which provides in relevant part:

“Purchaser hereby releases Seller, Fairfield Development L.P., FF Properties L.P., FF Properties II LP, Fairfield Residential Holdings LLC, Fairfield Residential Company LLC and, Fairfield Investment Company LLC, together with all of their respective direct or indirect members, managers, partners, officers, directors, employees, representatives, agents, shareholders, trustees and/or beneficiaries and all their respective current and former affiliates, heirs, successors, assigns, predecessors, attorneys, agents and related entities (each a “Seller Related Party” and collectively the “Seller Related Parties”) from any and all liability in connection with any claims (including but not limited to all health and medical claims) which Purchaser may have against any of the Seller Related Parties, and Purchaser hereby agrees not to assert any claims, for damage, loss, compensation, contribution, cost recovery or otherwise, against any of the Seller Related Parties, whether in tort, contract, or otherwise, relating directly or indirectly to the condition of the Property...” (See Fairfield Development’s Separate Statement of Undisputed Facts [“SSUF”] at Nos. 197-198.)

But, as the opposition points out, there is a question as to whether the Fairfield Defendants induced plaintiff JRK to enter into the PSA through fraud. (See OPP at p. 24:2-13.) If so, the PSA could be subject to rescission and the release relied upon by Fairfield Development would have no force and effect. (See *Persson v. Smart Inventions, Inc.* (2005) 125 Cal.App.4th 1141, 1153 [“It is settled law that if a defrauded party is induced by false representations to execute a contract, the party has the option of rescinding the contract or affirming it and recovering damages for the fraud.”].) It is not yet clear if the Fairfield Defendants engaged in fraud as the court has allowed Plaintiffs to amend the fraud claims for reasons articulated above. Thus, the court, at this time, finds that summary adjudication is not warranted as Plaintiffs may still be able to allege and maintain a valid fraud claim.

Accordingly, the motion for summary adjudication to the third cause of action is DENIED. The court's ruling is without prejudice to defendant Fairfield Development raising this argument in a subsequent motion for summary judgment or summary adjudication after the filing of an amended pleading.

Fourth Cause of Action: Breach of Contract

“To establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages to the plaintiff.” (*Maxwell v. Dolezal* (2014) 231 Cal.App.4th 93, 97-98.)

“Contract formation requires mutual consent, which cannot exist unless the parties ‘agree upon the same thing in the same sense.’ [Citations.] ‘If there is no evidence establishing a manifestation of assent to the “same thing” by both parties, then there is no mutual consent to contract and no contract formation.’ [Citation.] ‘Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings.’ [Citations.]” (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 208 (*Bustamante*).)

“Where the existence of a contract is at issue and the evidence is conflicting or admits of more than one inference, it is for the trier of fact to determine whether the contract actually existed. But if the material facts are certain or undisputed, the existence of a contract is a question for the court to decide. [Citation.]” (*Bustamante, supra*, 141 Cal.App.4th at p. 208.)

On summary adjudication, defendant Fairfield Development argues there is no viable claim for breach of contract as it was not a party to the PSA. (See Fairfield Development's SSUF at Nos. 120-179.) This argument is persuasive as the breach of contract claim arises from the PSA entered into between plaintiff JRK and defendant Fairfield Great Oaks. (See FAC at ¶ 80.) And, the FAC specifically alleges breaches by Fairfield Great Oaks for failing to perform or properly perform its obligations under the PSA. (*Id.* At ¶ 84.) Plaintiffs appear to concede this argument as they do not address this point in their opposition and thus fail to raise any triable issue of material fact. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is “equivalent to a concession”]; see also *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal. App. 4th 507, 529 [failure to challenge a contention in a brief results in the concession of that argument].)

Therefore, the motion for summary adjudication to the fourth cause of action is GRANTED.

Seventh Cause of Action: Declaratory Relief

Code of Civil Procedure section 1060, which governs actions for declaratory relief, provides: “Any person interested under a written instrument ..., or under a contract, or who desires a declaration of his or her rights or duties with respect to another ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a

determination of any question of construction or validity arising under the instrument or contract.”

“Summary judgment is appropriate in a declaratory relief action when only legal issues are presented for the court’s determination. [Citation.] The defendant’s burden in a declaratory relief action ‘is to establish the plaintiff is not entitled to a declaration in its favor. It may do this by establishing (1) the sought-after declaration is legally incorrect; (2) undisputed facts do not support the premise for the sought-after declaration; or (3) the issue is otherwise not one that is appropriate for declaratory.’ [Citation.]” (*California Public Records Research, Inc. v. County of Yolo* (2016) 4 Cal.App.5th 150, 185.)

On summary adjudication, defendant Fairfield Development contends there is no viable claim for declaratory relief as it was not a party to the PSA. While the seventh cause of action refers to the PSA, the declaratory relief claim arises from an actual controversy regarding the enforceability of the releases in the PSA. Plaintiffs specifically allege that:

“An actual controversy now exists between Plaintiff JRK and Fairfield Defendants with respect to the rights and duties of the parties regarding the enforceability of any releases in the PSA as a result of the false and misleading statements, representations and omissions by Fairfield Defendants with respect to the defects, errors and the hidden and concealed conditions in the Project and Property constructed by Fairfield Defendants and sold to Plaintiff JRK without disclosure.” (FAC at ¶ 106, emphasis in bold added.)

Even though Fairfield Development is not a named party to the PSA, the entity is identified in Section 7 of the agreement as a “Seller Related Party” subject to certain releases contained therein. (See Plaintiffs’ Additional Facts at No. 57; Schnarr Decl. at Ex. D.) Thus, the fact that Fairfield Development is not a named party to the PSA is not fatal to resolving the declaratory relief cause of action. (See *Otay Land Co. v. Royal Indemnity Co.* (2008) 169 Cal.App.4th 556, 562 [“The fundamental basis of declaratory relief is the existence of an actual, present controversy over a proper subject.”]; see also *Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 647 [“Code of Civil Procedure section 1060 does not require a breach of contract in order to obtain declaratory relief, only an ‘actual controversy.’ ”].) Furthermore, Fairfield Development’s own motion seeks to rely on these releases in challenging the third cause of action for negligence as articulated above. Therefore, the court finds Plaintiffs have a viable claim for declaratory relief in this action.

Consequently, the motion for summary adjudication to the seventh cause of action is DENIED.

Motion for Summary Adjudication by Defendant Fairfield Great Oaks

Defendant Fairfield Great Oaks seeks an order of summary adjudication with respect to the first and second causes of action.

Request for Judicial Notice

The request for judicial notice is DENIED for the same reasons stated above in connection with the court's order addressing the motion for summary judgment and summary adjudication by defendant Fairfield Development.

First Cause of Action: Fraudulent Concealment

The motion for judgment on the pleadings to the first cause of action is GRANTED WITH 30 DAYS LEAVE TO AMEND for reasons stated above in the court's order addressing the motion for summary judgment and summary adjudication by defendant Fairfield Development.

Second Cause of Action: Negligent Misrepresentation

The motion for judgment on the pleadings to the second cause of action is GRANTED WITH 30 DAYS LEAVE TO AMEND for reasons stated above in the court's order addressing the motion for summary judgment and summary adjudication by defendant Fairfield Development.

Disposition

The motion for summary judgment to the FAC by defendant Fairfield Development is DENIED.

The motion for judgment on the pleadings to the first and second causes of action by defendant Fairfield Development is GRANTED WITH 30 DAYS LEAVE TO AMEND.

The motion for summary adjudication to the third and seventh causes of action by defendant Fairfield Development is DENIED.

The motion for summary adjudication to the fourth cause of action by defendant Fairfield Development is GRANTED.

The motion for judgment on the pleadings to the first and second causes of action by defendant Fairfield Great Oaks is GRANTED WITH 30 DAYS LEAVE TO AMEND.

The court will prepare the order.

Calendar Line 5

Subramanyam Ramaswamy vs PPC Sage LLC et al.
24CV450632

Defendants move to compel further responses to special interrogatories, requests for admission, and requests for production of documents.

Timeliness

Plaintiff served verified responses on September 22, 2025. Any motion to compel further responses was required to be filed within 45 days thereafter, i.e., no later than November 6, 2025. (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c), 2033.290, subd. (c).) Defendants did not file this motion until December 4, 2025.

No written stipulation extending the statutory deadline has been shown. Compliance with the 45-day requirement is mandatory and jurisdictional, and an untimely motion must be denied. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Defendants' argument that Plaintiff's responses are "evasive" or "tantamount to no responses" is unavailing. Where verified responses have been served, any alleged deficiencies must be raised through a motion to compel further responses within the statutory period. (*Standon Co. v. Superior Court* (1990) 225 Cal.App.3d 898, 903; *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905–906.) Courts strictly enforce the 45-day limitation. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 136–138.)

Because the motion is untimely, the Court does not reach the merits.

Service

The Court notes the proof of service reflects electronic service only. Electronic service on an unrepresented party requires consent. (Code Civ. Proc., § 1010.6, subd. (c); Cal. Rules of Court, rule 2.251(c)(3)(B).) The record does not establish such consent.

Sanctions

Defendants' request for \$1,140 in sanctions is DENIED because Defendants are not the prevailing party. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d).)

Plaintiff's request for \$1,200 in sanctions is also DENIED. Although the discovery statutes mandate sanctions against an unsuccessful moving party absent substantial justification, Plaintiff has not identified any recoverable out-of-pocket expenses. A self-represented non-attorney litigant may not recover attorney fees or compensation for the value of his or her own time. (*Trope v. Katz* (1995) 11 Cal.4th 274, 292; *Argaman v. Ratan* (1999) 73 Cal.App.4th 1173, 1180.) Section 2033.030 authorizes recovery of reasonable expenses incurred; no such expenses have been shown.

DISPOSITION

Defendants' motion is DENIED.

Defendants' sanctions request is DENIED.

Plaintiff's sanctions request is DENIED.

The Court will prepare the order.

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Calendar Line 6
Richard Chamberlain v. Jason Chamberlain
25CV457483

Defendant moves for an order declaring Plaintiff a vexatious litigant pursuant to Code of Civil Procedure section 391, subdivision (b)(3), and for issuance of a prefiling order under section 391.7.

Plaintiff opposes, arguing the motion is premature due to a pending motion for reconsideration of the Court's summary judgment ruling, and further contending that his litigation conduct was justified by Defendant's discovery responses and procedural posture.

LEGAL STANDARD

Under Code of Civil Procedure section 391, subdivision (b)(3), a "vexatious litigant" includes a person who, in any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, or engages in tactics that are frivolous or solely intended to cause unnecessary delay or burden.

There is no bright-line numerical threshold; courts consider the totality of litigation conduct. (See *Morton v. Wagner* (2007) 156 Cal.App.4th 963.)

If a litigant is found vexatious, the Court may enter a prefiling order prohibiting the litigant from filing new litigation in propria persona without prior leave of the presiding judge. (CCP § 391.7.)

ANALYSIS

A. Repeated Filing of Motions and Papers

The record reflects Plaintiff filed approximately 35 to 37 motions, applications, or similar requests for relief in this action within a 12-month period. None resulted in substantive relief in Plaintiff's favor.

While lack of success alone is not dispositive, the volume and repetitive nature of motion practice—particularly in a single action and continuing after dispositive adjudication—supports a finding of abusive litigation conduct when considered in the totality of circumstances.

The Court further notes Plaintiff continued filing motions after entry of summary judgment, including motions directed at already adjudicated issues.

B. Unnecessary and Burdensome Discovery

The record reflects Plaintiff propounded in excess of 165 Requests for Admission, substantially exceeding statutory limitations under Code of Civil Procedure section 2033.030 for non-document authenticity requests.

Many requests appear unrelated to the claims or defenses in this action and include allegations of serious misconduct not tethered to the operative pleadings.

The scope, volume, and subject matter of the requests support a finding of unnecessary and burdensome discovery practice.

C. Litigation Conduct and Record Inconsistencies

The Court also considers evidence that Plaintiff submitted a declaration under penalty of perjury asserting that Defendant had produced no documents, notwithstanding record evidence indicating prior service of discovery responses and multiple exhibits.

Additionally, Plaintiff's communications with a witness who provided evidence in support of Defendant include language that may reasonably be construed as coercive in tone and effect.

The Court does not make separate findings beyond the scope of this motion regarding witness intimidation or misconduct, but considers these circumstances as part of the overall litigation pattern.

D. Plaintiff's Opposition

Plaintiff argues the motion is premature due to a pending motion for reconsideration of the Court's summary judgment ruling. This argument is not well-taken. A motion for reconsideration under Code of Civil Procedure section 1008 does not operate as an automatic stay of proceedings and does not divest the Court of authority to hear and decide other properly noticed motions. The Court therefore rejects Plaintiff's contention that the pending reconsideration motion precludes adjudication of this motion.

Plaintiff further argues that the volume of filings was necessitated by Defendant's discovery conduct. The Court is not persuaded that this justifies the repeated filing of numerous motions and extensive discovery requests, particularly after dispositive adjudication of the action.

Plaintiff's remaining arguments, including characterization of citation errors as clerical, do not materially alter the analysis under section 391(b)(3).

DISPOSITION

Considering the totality of the record, the Court finds that Plaintiff, while acting in propria persona, has repeatedly filed unmeritorious motions and engaged in litigation practices that have imposed unnecessary burden on Defendant and the Court.

Accordingly, Defendant has established that Plaintiff meets the definition of a vexatious litigant under Code of Civil Procedure section 391, subdivision (b)(3).

ORDER

1. Defendant's motion to declare Plaintiff a vexatious litigant is GRANTED.

2. Pursuant to Code of Civil Procedure section 391.7, Plaintiff is prohibited from filing any new litigation in propria persona in the courts of the State of California without first obtaining leave of the presiding judge of the court where the litigation is proposed to be filed.
3. The Clerk of the Court shall transmit notice of this order as required for inclusion on the Judicial Council vexatious litigant list.

The Court will prepare the Order.

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Calendar Line 13

Danea Burleson vs Bay Area Ketamine Center, Inc. et al.
25CV469611

BACKGROUND

Plaintiff, a former patient and former employee of Defendant, moves for a protective order restricting Defendant's communications with Plaintiff and Plaintiff's counsel, and further seeks sanctions under Code of Civil Procedure sections 128.5, 128.7, and 2023.030. Defendant, in propria persona, opposes and argues the motion is procedurally improper and must proceed under Code of Civil Procedure section 527.6.

LEGAL STANDARD

Defendant's reliance on Code of Civil Procedure section 527.6 is misplaced. That statute governs standalone civil harassment restraining order proceedings and is not a prerequisite to issuance of a case-management protective order within pending civil litigation. The Court has broad authority to control proceedings and regulate litigant conduct under Code of Civil Procedure sections 128, subdivision (a)(3) and (a)(5), and 187, as well as authority to issue protective orders to prevent harassment, annoyance, and undue burden, including under section 2017.020 where appropriate. Defendant's procedural objection is therefore overruled.

ANALYSIS

The Court finds good cause for a narrowly tailored protective order. The record reflects ongoing direct communications from Defendant to Plaintiff despite Plaintiff's representation by counsel, including communications that are not necessary to the litigation and are reasonably characterized as harassing or inappropriate in tone. The Court finds that restrictions on direct party-to-party contact are necessary to preserve orderly litigation and protect Plaintiff from improper contact.

The Court further finds it appropriate to regulate Defendant's communications with Plaintiff's counsel to the extent such communications occur, limiting them to those expressly permitted by law or court order and requiring that any such communications be professional and limited to legitimate litigation matters.

SANCTIONS

Plaintiff's request for sanctions under Code of Civil Procedure sections 128.5, 128.7, and 2023.030 is denied without prejudice. While the Court does not impose sanctions at this time, the Court expressly admonishes Defendant that the conduct at issue is improper; future violations may result in sanctions or other corrective orders.

IT IS HEREBY ORDERED:

1. Defendant shall not directly contact Plaintiff in any manner, including email, telephone, text message, written correspondence, or in person. All communications shall be directed through Plaintiff's counsel.

2. Defendant shall not contact Plaintiff's counsel directly except as expressly permitted by law or court order. Any permitted communications shall be limited to legitimate litigation matters and conducted in a professional manner.
3. Defendant is ordered to cease and desist from harassing, threatening, intimidating, or abusive communications directed to Plaintiff or Plaintiff's counsel in connection with this action.
4. Plaintiff's request for sanctions is DENIED WITHOUT PREJUDICE.
5. Defendant is admonished that future violations of this order may result in sanctions or other appropriate court action.
6. This order is issued pursuant to Code of Civil Procedure sections 128, subdivision (a)(3) and (a)(5), 187, and 2017.020 (to the extent applicable), and remains in effect pending further order of the Court.

Plaintiff to prepare the order accompanied by Form EFS-020 within 7 days of hearing.

Calendar Line 14

Case Name: *Immigration Resettlement and Cultural Center, Inc. v. Cuong Nguyen, et al.*

Case No.: 25CV472916

Plaintiff Immigration Resettlement and Cultural Center, Inc. (“Plaintiff,” or “IRCC”) alleges Defendants Cuong Nguyen, Nhut Ho, Tue Quang Phan, Hong Cao, and My Linh Pham, and Does 1 through 50 inclusive (collectively, “Defendants”) improperly represented themselves as the Board of Directors of IRCC, leading to the continued closure of the Viet Museum, the disruption of funding, and harm to the community for which no adequate remedy at law exists. Presently before the court is Defendants’ demurrer to Plaintiff’s First Amended Complaint (“FAC”).

As discussed below, the court **OVERRULES** the demurrer.

I. BACKGROUND

IRCC was founded in 1980 as a nonprofit community-based organization located in San Jose, California. (FAC, ¶ 5.) IRCC provides services and programs to the community in Santa Clara County, primarily to persons of Vietnamese origin, and also runs the Viet Museum in San Jose History Park. (FAC, ¶¶ 5, 6.)

Loc Vu (“Vu”) was the founder of the IRCC and, until January 16, 2025, the President and Executive Director. (FAC, ¶ 7.) The bylaws of the IRCC, specifically Article III, Section 3, entitled “Method to Elect Board of Directors,” prescribe that each year, at the annual meeting, the members vote on the Board of Directors. (FAC, ¶ 8.) The same bylaws state in Section 4 that the President must preside over every meeting of the members and the Board of Directors of the IRCC. (FAC, ¶ 9.) In June 2024, Vu informed Defendants that Santa Clara County had given IRCC a sizable grant of approximately \$55,000.00. (FAC, ¶¶ 10; 15.) Vu also informed Defendants that he, as Executive Director, did not think Defendant Hong Cao (“Cao”) was the right person to take over for him and he wanted to place Cao on leave for two months from his position as director of operations of the Viet Museum. (*Ibid.*) Vu also told Defendants that he “strongly objected to actions the group wanted to take that would violate the By-Laws and dishonor the organization.” (*Ibid.*)

Defendants began meeting in secret, without Vu, in violation of IRCC’s bylaws, and decided to open a new bank account to hold the grant funds without Vu’s knowledge. (FAC, ¶¶ 11, 12.) On July 19, 2024, Cao filed a Statement of Information with the California Secretary of State, listing himself and others² as directors without lawful election by the membership. (FAC, ¶ 13.) Cao and Defendant Nhut Ho (“Ho”) “submitted to Santa Clara County accusations” that Vu was misappropriating or mismanaging funds. (*Ibid.*)³

On August 16, 2024, Defendant Cuong Nguyen (“Nguyen”) informed the County of Santa Clara⁴ that “the existing IRCC Bank of America account had been closed and directed

² The FAC does not specify who the “others” listed as directors of IRCC in the Statement of Information are.

³ The FAC does not identify the County representatives or entities that Cao and Ho corresponded with or the context of that conversation.

⁴ Again, it is unclear who Nguyen communicated to in the County or the context of that conversation.

that \$55,000 in grant money be deposited into a new Cathay Bank account under Defendants' control." (FAC, ¶ 15.) However, the Bank of America account had not been closed and had long been used for County grant transfers. (*Ibid.*) The Defendants' misrepresentation created confusion and risked forfeiture of the grant, and "[a]t the request of Supervisor Cindy Chavez, a meeting was convened and a compromise was reached: the grant money would be deposited in the Bank of America account, and three of the Defendants were added as signers to the B of A account."⁵ (*Ibid.*)

The \$55,000 grant was deposited on October 18, 2024, after which "the Defendants again demanded that the funds be transferred to their Cathay Bank account. In response, Mr. Vu, in his role and authority as President and Executive Director, removed the three co-signers from the B of A account on December 12, 2024." (FAC, ¶ 16.)⁶

On December 20, 2024, Defendants contacted History San Jose ("HSJ"), a nonprofit corporation designated by the City of San Jose to operate and maintain History Park, where IRCC operated the Viet Museum. (FAC, ¶¶ 6, 22.) Defendants told HSJ that Defendants were the rightful representatives of the IRCC. (FAC, ¶ 22.) As a result, HSJ closed the museum on December 23, 2024, and stated it would not allow anyone back in until it was legally determined who was the proper Board of Directors of the IRCC. (FAC, ¶ 23.)

On December 31, 2024, Cao and Ho "terminated Vu as Executive Director of IRCC." (FAC, ¶¶ 13, 14.) Vu was not terminated as President of IRCC. (FAC, ¶ 14.)

On January 11, 2025, Vu called a special meeting of members to elect a new Board, seemingly because "many of the alleged members of the Board, including the Defendants, were not legitimate IRCC Board members since they were never voted in by the membership at an annual meeting." (FAC, ¶ 17.) Vu requested the attendance of all members on the IRCC membership lists that have been approved as members and gave specific notice to Defendants of this special meeting and encouraged them to participate in the election. (FAC, ¶ 18.) The Defendants did not attend the meeting. (FAC, ¶ 19.) The IRCC membership elected a new Board on January 11, 2025. (FAC, ¶ 20.)

On January 16, 2025, at the first meeting of the new Board, Vu resigned from his positions as President and Executive Director and Quinn Tran was elected to replace him.⁷ (FAC, ¶ 20.) On February 26, 2025, IRCC held the annual meeting required under the bylaws. (FAC, ¶ 21.) At the annual meeting, the members re-elected the same Board members who were elected in January at the special meeting. (*Ibid.*)

Based on the foregoing, IRCC initiated this action on August 14, 2025. IRCC then filed the First Amended Complaint on October 17, 2025. IRCC seeks "a judicial determination and declaration that the current Board is duly elected pursuant to the IRCC By-Laws and statements by the Defendants are invalid and of no force and effect...Unless Defendants are enjoined from claiming they are legitimate members of the Board of Directors, Plaintiff will

⁵ The FAC does not indicate who was at this meeting.

⁶ The FAC does not state who Defendants directed their demand to.

⁷ The FAC does not make clear how this relates to the earlier allegation that two of Defendants "attempted to suspend" and then "terminated" Vu from his role as Executive Director on December 31, 2024. (FAC, ¶¶ 13, 14.)

suffer great and irreparable injury due to the continued closure of the Viet Museum, the disruption of funding, and the harm to the community for which no adequate remedy at law exists.” (FAC, ¶¶ 26, 27.) Defendants demurred on November 18, 2025.

II. DEMURRER

A. Legal Standard

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) “It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while “[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Analysis

At the outset, the court notes that in its Opposition to Defendants’ Demurrer, Plaintiff requests judicial notice of the following: (1) a complaint subsequently filed by Defendant in Santa Clara County Superior Court entitled *Cuong Nguyen, et al. v. Immigrant Resettlement and Cultural Center, Inc., et al.*, Case No. 25CV477278, filed October 10, 2025; (2) Defendants’ Case Management Statement in the present action, filed February 18, 2026; and (3) IRCC’s bylaws, corporate governance documents, and operative governing instruments referenced in and attached the FAC. The court grants each request for judicial notice. All three items are proper subjects of judicial notice because each is a court record within the meaning of Evidence Code section 452, subdivision (d). (Evid. Code, § 452, subd. (d) [judicial notice may be taken of “records of... any court of this state[.]”]; see also Evid. Code § 453 [judicial notice compulsory where adverse party has advance notice and sufficient information furnished to the court regarding the request].) Nevertheless, the complaint and the Case Management Statement referencing that complaint filed in another docket do not have any bearing on the matter currently before the court, which is the demurrer in *IRCC v. Cuong Nguyen*. IRCC’s bylaws, corporate governance documents, and operative governing instruments were referenced in and attached to the FAC and thus are also a court record within the meaning of Evidence Code section 452, subdivision (d). The request for judicial notice is granted.

Defendants demur on the basis that those suing on behalf of IRCC lack standing and therefore IRCC lacks capacity to sue. Defendants argue that according to the FAC, the election of the most recent Board of Directors failed to comply with IRCC’s own bylaws; thus, the new Board of Directors elected at that time do not have the authority to act as IRCC’s Board of

Directors and commence a lawsuit under Corporations Code sections 7211 and 5140. Defendants also argue that IRCC does not have standing to commence the instant action because only Defendants, as de facto Board Members, would have standing to act as IRCC and commence a suit.

Code of Civil Procedure section 367 provides that “[e]very action must be prosecuted in the name of the real party in interest, except as otherwise provided in statute.” (Code Civ. Proc., 367.) The plaintiff has the burden to establish standing. (*Amundson v. Catello* (2025) 111 Cal.App.5th 817, 824.) Defendants allege that Plaintiff has not established standing to sue as IRCC because only the Board of Directors can sue as IRCC, and Defendants are the board of directors. (Demurrer, pp. 4:12-17, 5:18-25.) It is true that the authority to manage the business and affairs of a corporation, including commencing or defending actions, is vested in its board of directors. (Corp. Code, § 300, subd. (a); see also Corp. Code, § 5410 [nonprofit public benefit corporation has all the powers of a natural person].)

Defendants’ first argument that IRCC does not have standing to be a plaintiff in this matter because the election of the most recent Board of Directors failed to comply with IRCC’s own bylaws fails. Defendants’ argument relies on an assumption that the most recent Board of Directors are acting as IRCC in this action, but the face of the complaint does not so allege or provide a basis for reaching that conclusion. Defendants also do not request judicial notice of any item to prove the assumption at the heart of this argument. As “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.), the court cannot sustain Defendants’ demurrer based on an argument about the identity of the persons bringing suit; the pleadings simply do not show who filed the suit on behalf of IRCC.

Defendants also argue that only they would have standing to sue as IRCC because they have been acting as “de facto” Board members. It is clear from the face of the complaint that there is a dispute about who has authority to act as IRCC’s Board of Directors; Plaintiff’s FAC asks this court to make “a judicial determination and declaration that the current Board is duly elected pursuant to the IRCC By-Laws[.]” (FAC, ¶ 26.) The pleadings indicate that parties dispute the legitimacy of the most recent election of IRCC’s Board of Directors and consequently disagree about the composition of IRCC’s Board of Directors. The identities of the duly elected members of IRCC’s Board of Directors is a factual issue that cannot be resolved at the pleading stage. (See *Bath v. State of California* (2024) 105 Cal.App.5th 1184, 1201 [“Questions of fact cannot be decided on demurrer.”], internal citations omitted.)

Nor can the record support a finding that the IRCC’s current Board is illegitimate as a matter of law, as Defendants suggest. The bylaws of IRCC, included as an exhibit to the FAC, state in Article III, Section 3 that “[t]he directors shall be elected at each annual meeting of the members, and shall hold office until their respective successors are elected.” (FAC, Ex. A.) Plaintiff alleges that IRCC had a special meeting of members to elect a new Board, seemingly because “many of the alleged members of the Board, including the Defendants, were not legitimate IRCC Board members since they were never voted in by the membership at an annual meeting.” (FAC, ¶ 17.) The IRCC membership elected a new Board at a special meeting on January 11, 2025. (FAC, ¶ 20.) Then, on February 26, 2025, IRCC held the annual meeting required under the bylaws. (FAC, ¶ 21.) At the annual meeting, the members re-elected the new Board that was elected in January at the special meeting. (*Ibid.*) Thus, even assuming that Defendants are correct that the new Board could not be elected via the special

meeting, the FAC alleges that IRCC members duly elected the new Board at the annual meeting pursuant to Article III, Section 3 of the bylaws. The FAC alleges that the most recently elected Board of Directors were duly elected in accordance with IRCC's bylaws, which is sufficient to overcome Defendants' standing challenge.

At the demurrer stage, the court must take all facts in the complaint as true. (See *Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958 ["the facts alleged in the pleading are deemed to be true, however improbable they may be."] [internal citations and quotations omitted].) Defendants' sole basis for demurring relies on facts that are in dispute and which cannot be decided at this stage. Accordingly, Defendants' demurrer is OVERRULED.

III. DISPOSITION

Defendants' demurrer is OVERRULED.

The court will prepare the Order.

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Calendar line 15

Case Name: *Lopez v. Ford Motor Company et al.*

Case No.: 25CV474936

Plaintiff Hosuwaldo Lopez (“Plaintiff”) purchased a 2021 F-250 (Subject Vehicle) on June 15, 2021 from Future Ford of Clovis (“Dealership”). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) Plaintiff sued Dealership and Ford Motor Company on September 11, 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the FAA governs the Arbitration Provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp 6:25-7:1.) The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

There is a Valid Agreement to Arbitrate

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction of relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A.) Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 5 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Ibid.*) The RISC further drew the arbitration provision to Plaintiff’s attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ABOVE, BEFORE SIGNING BELOW.” (*Ibid.*) Plaintiff’s signature on these sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ ‘A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.’ ”].)

Plaintiff argues Dealership has failed to properly authenticate the RISC and thus fails to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the Arbitration Provision in the motion itself. (Mtn. to Compel Arbitration at pp. 2:25-4:12.) In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.) Dealership has shown a valid agreement to arbitrate.

The Scope of the Arbitration Agreement Covers Plaintiff’s Claims

Here, the arbitration provision broadly applies to “any claim or dispute, whether in contract, tort, statute, or otherwise . . . which arises out of or relates to your . . . purchase or condition of this vehicle, this contract or any resulting transaction or relationship” (Clayton Decl., Ex. A.) Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is

ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue “warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership].” (Opposition at p. 2:8-10.) That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer’s attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126.) By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff’s claims.

The court does not reach Dealership’s arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership’s arguments on those points.

This Action is Stayed in its Entirety

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues “[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective.” (Reply at p. 8:22-23.) Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

DISPOSITION

The Motion to Compel Arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The court will prepare the order.